

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOSEPH VALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, D.T. CHRISTOP E. GALVEZ, DET.
SHANTE TERRELL, and DET. TEARLE CONNELL,

Defendants,

-----X
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
October 31, 2019

Index No.:

Date purchased:

Plaintiff designates
KINGS County
as the place of Trial.

**AMENDED SUMMONS WITH
NOTICE**

The basis of the venue is
Place of Occurrence:
Brooklyn, NY


Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: negligence; personal injuries; assault; battery; excessive force; unlawful detention; false arrest; false imprisonment; violation of civil rights;

The relief sought is monetary damages: compensatory damages and exemplary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from August 30, 2019 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X Index No.:
JOSEPH VALEZ,

Plaintiff,

**AMENDED VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, D.T. CHRISTOP E. GALVEZ, DET. SHANTE
TERRELL, and DET. TEARLE CONNELL,Defendants,
-----X

1. At all times hereinafter mentioned, plaintiff Joseph Valez was and still is a resident of the County of Kings, City and State of New York.

2. At all times hereinafter mentioned, defendant The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant New York Police Department is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. At all times hereinafter mentioned defendant, Christop E. Galvez, shield # 3482, was a Detective employed by the New York City Police Department.

5. At all times hereinafter mentioned defendant, D.T. Christop E. Galvez was acting within the scope of his employment as a NYPD detective.

6. At all times hereinafter mentioned defendant, Detective Shante Terrell, badge # 4424, was a Detective employed by the New York City Police Department.

7. At all times hereinafter mentioned defendant, Det. Terrell was acting within the scope of his employment as a NYPD detective.

8. At all times hereinafter mentioned defendant, Detective Tearle Connell, badge # 1053, was a Detective employed by the New York City Police Department.

9. At all times hereinafter mentioned defendant, Det. Tearle Connell was acting within the scope of his employment as a NYPD detective.

10. At all times hereinafter mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

11. On September 5, 2019 plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the incident giving rise to this law suit.

12. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

13. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

14. That on August 30, 2019 at approximately 4:15 pm in front of 870 41st Street, Brooklyn, New York, police officers, including D.T. Christop E. Galvez, Det. Shante Terrell and Det. Tearle Connell, without reasonable or probable cause, assaulted and battered plaintiff.

15. That police officers, including D.T. Christop E. Galvez, Det. Shante Terrell and Det. Tearle Connell, used unnecessary and excessive force.

16. That plaintiff sustained severe personal injuries as a result of being struck by

Detective Terrell.

17. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

18. The incident resulted from the intentional, wanton, wrongful conduct of the police officers, including D.T. Christop E. Galvez.

19. The incident resulted from the intentional, wanton, wrongful conduct of the police officers, including Detective Shante Terrell.

20. The incident resulted from the intentional, wanton, wrongful conduct of the police officers, including Detective Tearle Connell.

21. As a result of the foregoing, plaintiff sustained compensatory damages and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 21 hereof with the same force and effect as though fully set forth herein at length.

23. After assaulting and battering plaintiff, police officers unlawfully detained, falsely arrested, and falsely imprisoned plaintiff until August 31, 2019 at approximately 7:00 pm.

24. The unlawful detainment, unlawful arrest and unlawful imprisonment of plaintiff were without any probable cause or justification.

25. That plaintiff was not arraigned.

26. That the police officers' conduct, including the conduct of D.T. Christop E.

Galvez, Det. Connell, and Det. Terrell was intentional, wanton, and wrongful.

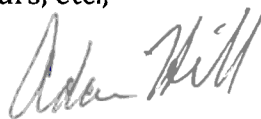
27. The detainment, arrest and imprisonment caused plaintiff pain, humiliation, personal injuries and suffering.

28. As a result of the foregoing, plaintiff sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
October 31, 2019

Yours, etc.,



Adam Hill, Esq. OF
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35TH Floor
NEW YORK, New York 11241
(718) 855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

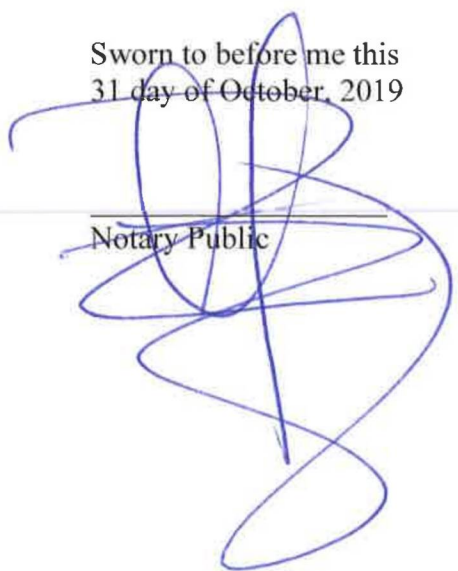
Joseph Valez, being duly sworn, deposes and says:

I am the plaintiff in the within action, have read the foregoing **AMENDED COMPLAINT** and know the contents thereof; that same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters, I believe it to be true.



JOSEPH VALEZ

Sworn to before me this
31 day of October, 2019



Notary Public



Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

JOSEPH VALEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, D.T. CHRISTOP E.
GALVEZ, DET. SHANTE TERRELL, AND DET. TEARLE CONNELL,**

Defendants,

SUMMONS & COMPLAINT

LAW OFFICES OF ROSS AND HILL, PLLC.

Attorneys for Plaintiff
Office and Post Office Address
**16 Court Street, 35th Floor
NEW YORK, New York 11241
Tel (718) 855-2324
Fax (718) 855-4617**

To:

**Service of a copy of the within
is hereby admitted.**

Dated:

Attorney(s) for
